

STATE OF NEW YORK

8725--A

2025-2026 Regular Sessions

IN ASSEMBLY

June 2, 2025

Introduced by M. of A. JACOBSON -- read once and referred to the Committee on Governmental Employees -- recommitted to the Committee on Governmental Employees in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the retirement and social security law, in relation to disability retirement benefits for the presumption of cancer affecting the endocrine and thyroid systems and Parkinson's Disease for certain firefighters

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 63-h of the retirement and social security law, as
2 added by chapter 533 of the laws of 2021, is amended to read as follows:
3 § 63-h. Certain impairments of health; presumption. a. Any member of
4 the retirement system employed by the division of military and naval
5 affairs shall be eligible to retire pursuant to the provisions of this
6 section if [~~he or she~~] such member is an airport firefighter apprentice,
7 airport firefighter I, airport firefighter II, airport firefighter III
8 or training and safety officer.
9 b. Notwithstanding any provision of this chapter or of any general or
10 special law to the contrary, any condition of impairment of health
11 caused by: (1) diseases of the heart; or (2) any (i) melanoma or (ii)
12 condition of cancer affecting the lymphatic, digestive, hematological,
13 urinary, neurological, breast, reproductive, endocrine, thyroid, or
14 prostate systems resulting in disability to a member covered by this
15 section, presently employed, who successfully passed a physical examina-
16 tion on entry into service as an airport firefighter apprentice, airport
17 firefighter I, airport firefighter II, airport firefighter III or train-
18 ing and safety officer which examination failed to reveal evidence of
19 any disease or other impairment of the heart or such melanoma or condi-
20 tion, shall be presumptive evidence that it was incurred in the perform-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [~~-~~] is old law to be omitted.

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1 ance and discharge of duty, unless the contrary be proven by competent
2 evidence and shall be paid a performance of duty disability retirement
3 allowance equal to that which is provided in section sixty-three of this
4 title, subject to the provisions of section sixty-four of this title.

5 c. Notwithstanding any provision of this chapter or of any general or
6 special law to the contrary, any condition of impairment of health
7 caused by diseases of the lung, resulting in disability to a member
8 covered by this section, presently employed, who successfully passed a
9 physical examination on entry into service as an airport firefighter
10 apprentice, airport firefighter I, airport firefighter II, airport fire-
11 fighter III or training and safety officer, which examination failed to
12 disclose evidence of any disease or other impairment of the lung, shall
13 be presumptive evidence that it was incurred in the performance and
14 discharge of duty, unless the contrary be proven by competent evidence
15 and shall be paid a performance of duty disability retirement allowance
16 equal to that which is provided in section sixty-three of this title,
17 subject to the provisions of section sixty-four of this title.

18 d. Notwithstanding any provision of this chapter or of any general or
19 special law to the contrary, any condition of impairment of health
20 caused by Parkinson's Disease resulting in total or partial disability
21 or death to a member covered by this section, presently employed, who
22 successfully passed a physical examination on entry into service as an
23 airport firefighter apprentice, airport firefighter I, airport fire-
24 fighter II, airport firefighter III or training and safety officer,
25 which examination failed to reveal any evidence of such condition, shall
26 be presumptive evidence that it was incurred in the performance and
27 discharge of duty, unless the contrary be proven by competent evidence
28 and shall be paid a performance of duty disability retirement allowance
29 equal to that which is provided in section sixty-three of this title,
30 subject to the provisions of section sixty-four of this title.

31 e. After the filing of an application such member shall be given one
32 or more medical examinations. If the comptroller determines that the
33 member is physically or mentally incapacitated for the performance of
34 duty and ought to be retired for performance of duty disability, such
35 member shall be so retired. Such retirement shall be effective as of a
36 date approved by the comptroller.

37 ~~[e-]~~ f. If the member, at the time of the filing of such application,
38 is eligible for a service retirement benefit, then and in that event,
39 such member may simultaneously file an application for service retire-
40 ment, provided that the member indicates on the application for service
41 retirement that such application is filed without prejudice to the
42 application for performance of duty disability retirement.

43 § 2. Section 607-k of the retirement and social security law, as added
44 by chapter 533 of the laws of 2021, is amended to read as follows:

45 § 607-k. Certain impairments of health; presumption. a. Any member of
46 the retirement system employed by the division of military and naval
47 affairs shall be eligible to retire pursuant to the provisions of this
48 section if ~~[he or she]~~ such member is an airport firefighter apprentice,
49 airport firefighter I, airport firefighter II, airport firefighter III
50 or training and safety officer.

51 b. Notwithstanding any provision of this chapter or of any general or
52 special law to the contrary, any condition of impairment of health
53 caused by: (1) diseases of the heart; or (2) any (i) melanoma or (ii)
54 condition of cancer affecting the lymphatic, digestive, hematological,
55 urinary, neurological, breast, reproductive, endocrine, thyroid, or
56 prostate systems resulting in disability to a member covered by this

1 section, presently employed, who successfully passed a physical examina-
2 tion on entry into service as an airport firefighter apprentice, airport
3 firefighter I, airport firefighter II, airport firefighter III or train-
4 ing and safety officer which examination failed to reveal evidence of
5 any disease or other impairment of the heart or such melanoma or condi-
6 tion, shall be presumptive evidence that it was incurred in the perform-
7 ance and discharge of duty, unless the contrary be proven by competent
8 evidence and shall be paid a performance of duty disability retirement
9 allowance equal to that which is provided in section sixty-three of this
10 chapter, subject to the provisions of sections sixty-three and sixty-
11 four of this chapter.

12 c. Notwithstanding any provision of this chapter or of any general or
13 special law to the contrary, any condition of impairment of health
14 caused by diseases of the lung, resulting in disability to a member
15 covered by this section, presently employed, who successfully passed a
16 physical examination on entry into service as an airport firefighter
17 apprentice, airport firefighter I, airport firefighter II, airport fire-
18 fighter III or training and safety officer, which examination failed to
19 disclose evidence of any disease or other impairment of the lung, shall
20 be presumptive evidence that it was incurred in the performance and
21 discharge of duty, unless the contrary be proven by competent evidence
22 and shall be paid a performance of duty disability retirement allowance
23 equal to that which is provided in section sixty-three of this chapter,
24 subject to the provisions of section sixty-four of this chapter.

25 d. Notwithstanding any provision of this chapter or of any general or
26 special law to the contrary, any condition of impairment of health
27 caused by Parkinson's Disease resulting in total or partial disability
28 or death to a member covered by this section, presently employed, who
29 successfully passed a physical examination on entry into service as an
30 airport firefighter apprentice, airport firefighter I, airport fire-
31 fighter II, airport firefighter III or training and safety officer,
32 which examination failed to reveal any evidence of such condition, shall
33 be presumptive evidence that it was incurred in the performance and
34 discharge of duty, unless the contrary be proven by competent evidence
35 and shall be paid a performance of duty disability retirement allowance
36 equal to that which is provided in section sixty-three of this chapter,
37 subject to the provisions of section sixty-four of this chapter.

38 e. After the filing of an application such member shall be given one
39 or more medical examinations. If the comptroller determines that the
40 member is physically or mentally incapacitated for the performance of
41 duty and ought to be retired for performance of duty disability, such
42 member shall be so retired. Such retirement shall be effective as of a
43 date approved by the comptroller.

44 [e-] f. If the member, at the time of the filing of such application,
45 is eligible for a service retirement benefit, then and in that event,
46 such member may simultaneously file an application for service retire-
47 ment, provided that the member indicates on the application for service
48 retirement that such application is filed without prejudice to the
49 application for performance of duty disability retirement.

50 § 3. This act shall take effect immediately.

FISCAL NOTE.--Pursuant to Legislative Law, Section 50:

This bill would provide a performance of duty disability presumption to members of the New York State and Local Employees' Retirement System (NYSLERS) employed by the Division of Military and Naval Affairs in certain airport firefighter titles and who contract endocrine/thyroid

cancer or Parkinson's disease. The retirement benefit will be equal to 75 percent of final average salary less workers' compensation.

This bill will not materially increase the state of New York's annual contributions.

In addition, there will be an immediate past service cost of \$67,900 borne by the state of New York as a one-time payment. This cost assumes that payment will be made on March 1, 2027.

Further, we anticipate some administrative costs to implement the provisions of this legislation.

These estimated costs are based on 66 affected members employed by the Division of Military and Naval Affairs, with annual salary of approximately 6.0 million as of March 31, 2025.

Summary of relevant resources:

Membership data as of March 31, 2025 was used to measure the impact of the bill, the same data used in the Actuarial Valuations dated April 1, 2025. Distributions and other statistics can be found in the 2025 Report of the Actuary and the 2025 Annual Comprehensive Financial Report. The actuarial assumptions and methods used are described in the 2025 Annual Report to the Comptroller on Actuarial Assumptions, and the Codes, Rules and Regulations of the State of New York: Audit and Control. The fair value of assets and GASB disclosures can be found in the 2025 Financial Statements and Supplementary Information.

Assumptions, demographics, and other considerations may have been modified to better reflect specific provisions of any proposed benefit change(s).

This fiscal note does not constitute a legal opinion on the viability of the bill, nor is it intended to serve as a substitute for the professional judgment of an attorney.

This estimate, dated March 23, 2026, and intended for use only during the 2026 Legislative Session, is Fiscal Note Number 2026-96. As Chief Actuary of the New York State and Local Retirement System (NYSLRS), I, Aaron Schottin Young, hereby certify that this analysis complies with applicable Actuarial Standards of Practice as well as the Code of Professional Conduct and Qualification Standards for Actuaries Issuing Statements of Actuarial Opinion of the American Academy of Actuaries, of which I am a member. I am a member of NYSLRS but do not believe it impairs my objectivity.